



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36063002

Date: JAN. 21, 2025

Motion on Administrative Appeals Office Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, an entrepreneur in the field of production engineering, seeks employment-based second preference (EB-2) classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this EB-2 classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Texas Service Center denied the petition, concluding that the record did not establish the Petitioner is eligible for a waiver of the job offer requirement in the national interest. We dismissed the appeal and subsequent combined motion to reopen and motion to reconsider. The matter is now before us on a second combined motion to reopen and motion to reconsider.

The Petitioner bears the burden of proof to demonstrate eligibility to U.S. Citizenship and Immigration Services (USCIS) by a preponderance of the evidence. Section 291 of the Act; *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). Upon review, we will dismiss the motions.

A motion to reopen must state new facts and be supported by documentary evidence. 8 C.F.R. § 103.5(a)(2). *See Matter of Coelho*, 20 I&N Dec. 464, 473 (BIA 1992) (requiring that new evidence have the potential to change the outcome). A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit.

It is important to note that our review on motion is limited to reviewing our latest decision, which is the September 2024 dismissal of the Petitioner's combined motion and not the Director's August 2023 decision. 8 C.F.R. § 103.5(a)(1)(ii). In dismissing the Petitioner's combined motion, we concluded the Petitioner had not provided new facts to establish that we erred in dismissing the appeal or established proper grounds for reconsideration.

On current motion, the Petitioner repeats verbatim several of his arguments regarding the national importance of his proposed endeavor from his previous combined motion and appeal without explaining why we should find these claims any more persuasive than before. In support of the motion

to reopen, the Petitioner provides additional information about the services his consulting company will provide to other businesses, along with articles explaining the benefits of these services. However, as we previously explained, we must focus on the Petitioner's *particular* venture. *See Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016) ("The first prong, substantial merit and national importance, focuses on the *specific* endeavor that the foreign national proposes to undertake.") (emphasis added). The articles may demonstrate the importance of these services for businesses, but the Petitioner has not provided sufficient evidence to show that his *specific* endeavor would meet the national importance element of the first prong under *Dhanasar*.

Although the Petitioner has submitted additional evidence in support of the motion to reopen, the Petitioner has not established eligibility. On motion to reconsider, the Petitioner has not established that our previous decision was based on an incorrect application of law or policy at the time we issued our decision. Therefore, the motions will be dismissed. 8 C.F.R. § 103.5(a)(4).

ORDER: The motion to reopen is dismissed.

FURTHER ORDER: The motion to reconsider is dismissed.